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General Comment

My name is Maia Kobabe. I am a full-time author/illustrator, and I have made art and writing my full time job since 2017, and I am hopeful that I will be able to do this for the rest of my life. I am writing to say I strongly oppose allowing any work, whether written, video, audio, visual art, or any future media created using AI content generators to be eligible for copyright in the United States of America.

Like many artists, I have watched in fear as the AI image generators from DALL-E to Stable Diffusion to Midjourney already begin to threaten the livelihood of illustrators in this country. We have already seen a book publisher choose to use an AI generated image for a book cover that would previously have been illustrated by a human ("Fractal Noise" by Christopher Paolini, published by Tor, 2023). Tor released a statement apologizing, saying they had purchased the base image from a reputable stock image website without knowing it was AI generated; but unfortunately stock websites are getting flooded with images, generated by technology trained on millions of artworks stolen from human artists.

David Holz, the founder of Midjourney, stated in a Forbes article that his company didn't even try to get permission from the artists whose work fed his machine learning program because "there really isn't a way to get a hundred million images and know where they're coming from" (Quote from "Midjourney Founder David Holz On The Impact Of AI On Art, Imagination And The Creative Economy" by Rob Salkowitz, September 16, 2022). I would like to say that he could have put forward an open call for art, and promised to pay artists, but he chose not to. At this point, I think the most accurate way to describe these machine learning algorithms is plagiarism software.

As a writer, I have started to fear that any sample of my work which I post online will be scrapped and used to train an algorithm which seeks to replace me. Several well known magazines have seen their submissions inboxes flooded with so many obviously computer generated short stories and articles that they have had to close their submissions to deal with the issue. Neil Clark, the editor of Clarkesworld, a prestigious sci-fi magazine, told BuzzFeed News in February that he was getting "buried" under AI generated story submissions. He was forced to close submissions indefinitely for the first time in the magazine's history to deal with the mess.

The current AI software does not create anything. All it does is regurgitate an amalgamation of what it's been fed. And what it has been fed is work, made by humans, who were not asked or paid for their labor to be used by these machine learning programs. As such, I do not think anything produced by any of the current AI programs should be considered eligible for copyright. Artists and writers deserve to be paid for their work, and it should not be legal to take their work without permission to train content generator algorithms.

Thank you, Maia Kobabe